

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DOMINICK MURPHY,

Respondent

) Case Number: FCS-13-349074

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), REUNIFICATION THERAPY, TIER 2 MEDIATION

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent Dominick Eugene Murphy (Father) and Other Parent Moneesha Sealey Evans (Mother). They share one minor child: Lyriq Genesis Murphy (DOB: 11/16/12).
- 2) On May 8, 2026, Father filed an emergency Request for Order seeking a modification of the existing child custody and visitation orders, reunification therapy, and Tier II mediation. In particular, Father is seeking sole legal and sole physical custody of the minor child and no visitation to Mother. Father alleges that Mother has physically abused the minor child and that Child Protective Services was involved. The Court granted an order shortening time for service and hearing and set the matter for Readiness on May 18, 2026.
- 3) On May 18, 2026, the Court referred the matter to FCS Mediation to occur on June 16, 2026 and set a return hearing for June 25, 2026.

- 1 4) On June 5, 2026, Mother filed a Responsive Declaration to Father's Request for Order, which has
2 been read and considered by the Court. Mother requests sole legal and sole physical custody of
3 the minor child with parenting time to Father every other weekend and during school breaks.
4 Mother asks the Court to deny Father's request for a Tier II interview of the minor child and for
5 reunification therapy.
- 6 5) On June 25, 2026, the Court denied all of Father's requests, with the exception of his request for
7 a Tier II interview of the minor child and set a further hearing for August 6, 2026.
- 8 6) On July 24, 2026, Father filed an additional Declaration, which has been read and considered by
9 the Court.
- 10 7) On July 28, 2026, the Court received and reviewed the Tier II report performed by FCS
11 Mediation.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child is the United States.
- 17 2) **The parties are ordered to appear.**
- 18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACK SPILBERG,

Petitioner

VS.

BROOKE SCHUMACHER,

Respondent

) Case Number: FDI-20-793956

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jack Spilberg (Father) and Respondent Brook Schumacher (Mother). They share one minor child: Bodie (DOB: 11/13/13).
- 2) On 12/30/21, the Court entered Judgment of Dissolution, Article 11 of which reserves jurisdiction over child support and includes orders regarding add-on expenses.
- 3) On 7/7/26, Father filed a Request for Order seeking modification of child support based on imputation of Mother's earning capacity because Mother has employment history in professional roles and is actively job searching. Father states Mother refuses to provide updated financial disclosures. The matter was set for hearing on 8/6/26.
- 4) On 7/7/26, Father filed an Income and Expense Declaration.
- 5) On 7/31/26, Father filed a Proof of Personal Service indicating Mother was served with the Request for Order and supportive pleadings on 7/11/26.
- 6) Mother did not file a Responsive Declaration.

1 7) The Court notes that Father filed an additional Request for Order on 7/31/26 seeking modification
2 of parenting time. The matter was set for Readiness hearing on 8/31/26.

3 **B. Findings and Order**

4 1) The party requesting imputation of earning capacity must present evidence that the other party
5 has the ability and opportunity to earn the attributed income, including, but not limited to,
6 evidence such as job qualifications, salary payable, and job opportunities. (See *Marriage of*
7 *Wittgrove* (2004) 120 CA4th 1317, 1329; *Marriage of Henry* (2005) 126 CA4th 111, 120.)

8 2) The Court finds Father presented no such evidence of Mother's earning capacity.

9 3) As such, Father's request for modification of child support based on imputation of Mother's
10 earning capacity is DENIED without prejudice.

11 4) The Court will prepare the Findings and Order After Hearing.
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

CHANGE OF CHILD CUSTODY, OST; MODIFICATION OF LEGAL CUSTODY (RE JONAH
DIAMOND)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michelle Diamond (Mother) and Respondent Lee Diamond (Father).
They share two minor children: Jonah Diamond (age 11) and Micah Diamond (age 8).
- 2) On June 30, 2026, Father filed a request for emergency child custody orders. In particular, Father
is seeking tie-breaking authority for all education related decisions as to Jonah.
- 3) On July 27, 2026, Mother filed a Responsive Declaration in which she asks the Court to deny
Father's requests.
- 4) On July 27, 2026, Mother's attorney, Kate Merrill filed a "Declaration in Response to
Respondent's Request Regarding Grade Retention."

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child(ren) is the United States.

- 3 2) Father's requests, as contained within the emergency Request for Order he filed on June 30, 2026,
4 is DENIED. The Court has reviewed the pleadings in their entirety and the Court is not willing to
5 give either parent "tie-breaking" authority. The parties just completed an extensive year-long
6 child custody evaluation. The Court is troubled by the fact that both parents are not working
7 together. However, the Court is compelled by the recommendations of the educational
8 professionals who have promoted Jonah to the sixth grade. The Court will not disturb their
9 recommendations.
- 10 3) Mother's request for attorney's fees is DENIED without prejudice.
- 11 4) All existing orders, not in conflict with the orders made herein, remain in full force and effect.
- 12 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEITH JOSEPH KRACH,

Petitioner

VS.

METTA GROKENBERGER KRACH,

Respondent

) Case Number: FDI-24-799139

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ACCESS TO 2701 BROADWAY, SAN FRANCISCO, CA; REQUEST FOR
ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ORDERS RE
MS ACCOUNTS HELD BY KEITH J. KRACH TRUST; REQUEST FOR ORDER: ORDER FOR
COURT AUTHORIZATION FOR ADDITIONAL MARGIN LOAN TO PURCHASE REAL
PROPERTY; REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, EX PARTE
ATTORNEY FEE DISTRIBUTION PER PARTIES' AGREEMENT

TENTATIVE RULING

The parties are Petitioner Keith Joseph Krach and Respondent Metta Grokenberger Krach. They share
two minor children: Emma Katherine Krach (DOB: 9/24/11) and John David Krach (DOB: 9/24/11).

There are currently five pending motions on for hearing on 8/6/26. Having read and considered the
pleadings, declarations, and other evidence submitted in this matter, the Court makes the following
findings and orders:

I. Request for Order Filed 2/25/26:

On 2/25/26, Respondent filed a Request for Order seeking bifurcation and termination of marital status.

This matter was resolved by Stipulation and Order filed 7/23/26, which provides the parties' agreement to
bifurcation and termination of marital status. A Status Only Judgment was entered 7/23/26.

1 **II. Request for Order Filed 3/23/26:**

2 **A. Procedural History**

3 1) On 3/23/26, Respondent filed a Request for Order seeking termination of temporary spousal
4 support and child support and an order that each party receive an uncharacterized distribution of
5 \$916,667 per month (\$11,000,000 annually) from the parties' Morgan Stanley accounts (which
6 Respondent asserts is the approximate amount that Petitioner unilaterally distributed to himself in
7 2024 and in 2025). Respondent requests the Court reserve jurisdiction over the characterization of
8 these distributions. Respondent requests the Court make additional orders regarding the parties'
9 Morgan Stanley accounts including:

10 a. Order Petitioner to direct Morgan Stanley to convert all the Morgan Stanley accounts that
11 he directed Morgan Stanley to put in his name alone (this includes, but is not limited to,
12 accounts ending *2891, *5716, *3960, *2309, *2310, *1184, *1193, and **025 –
13 collectively referred to herein as the “non-Trust Accounts”) to joint accounts held by both
14 parties.

15 b. Prohibit transfer or withdraw of any assets (including, but not limited to, cash or
16 securities) from any Morgan Stanley accounts, including the Trust Accounts and Non-
17 Trust Accounts, without the other party's prior written consent.

18 2) On 5/12/26, Petitioner filed a Responsive Declaration and Memorandum of Points and
19 Authorities in opposition to Respondent's Request for Order. Petitioner requests the Court
20 maintain the 11/22/24 orders for child and spousal support and the 1/6/26 orders regarding the
21 Morgan Stanley accounts at issue.

22 3) On 5/18/26, Respondent filed a Reply Declaration and supportive pleadings reiterating her
23 requests.

24 **B. Findings and Order**

25 1) Respondent's request for termination of temporary spousal support and child support and an order
26 that each party receive an uncharacterized distribution of \$916,667 per month (\$11,000,000
27 annually) from the parties' Morgan Stanley accounts is DENIED without prejudice.

28 2) The Court declines to issue an order directing Petitioner to convert all Morgan Stanley accounts
29 to joint title.

- 3) The Court declines to issue any additional orders regarding restrictions on the Morgan Stanley accounts.
- 4) The Court reserves jurisdiction over all issues in Respondent's 3/23/26 Request for Order to the time of trial.

III. Request for Order Filed 5/7/26:

A. Procedural History

- 1) On 3/10/25, Petitioner filed a Request for Order seeking access to the family residence located at 2701 Broadway San Francisco, CA for the purpose of taking inventory of the furniture and furnishings and retrieving personal belongings, heirlooms, business documents, and other items that remain in the property. Petitioner asserts that it is necessary he be allowed to take inventory to properly value and divide the estate. Petitioner states that since his departure from the Broadway residence, he has never been provided with a full inventory of his belongings, nor has Respondent facilitated a structured process for retrieval. Petitioner further requests that Respondent not pack or move Petitioner's belongings so Petitioner can verify them himself.
- 2) On 7/24/25, the Court granted Petitioner's Request for Order. The Findings and Order After Hearing (filed 8/20/25) states:
 - a. Mother shall not move or box up any more of Father's items at the Broadway residence without first obtaining Father's written permission.
 - b. The Court's jurisdiction to allocate the cost Mother has incurred to have Father's items professionally boxed to date is reserved.
 - c. The parties shall meet and confer regarding a date and location for Mother to deliver to Father his personal belongings that she represents have already been boxed. The parties shall share equally any cost incurred for the delivery (Father shall advance the cost). The items shall be delivered no later than Friday, 8/1/2025.
 - d. After reviewing the items in the boxes, Father shall provide to Mother, through counsel, a list of items or categories of items that he would still like to retrieve from the Broadway residence. Mother shall let Father know which items from the list she agrees Father may

1 take. This process shall be completed no later than 8/22/2025. The Court's jurisdiction to
2 resolve any disputes regarding items Mother does not agree Father may take is reserved.

- 3 e. The parties shall meet and confer regarding a date and time for Father to enter the
4 Broadway residence for a period of 3 hours. The parties shall also meet and confer to
5 identify a third party who will be present with Father while he is in the Broadway
6 residence. Mother must permit Father to enter the Broadway residence no later than
7 9/15/2025. Before Father enters the Broadway residence, so that Father will not need to
8 use the time he is in the residence to box items, Mother shall box up the items from
9 Father's list that Mother agreed he could take and have those boxes placed in the garage
10 for retrieval (if Mother incurs a cost for this task, the cost shall be shared equally and
11 Father shall advance the cost). When Father enters the Broadway residence, he shall
12 retrieve the items or categories of items that Mother agreed Father may take from
13 Father's list. For any other items Father wishes to take which Mother did not agree in
14 advance he could take (which may or may not have been on his list), Father must
15 photograph the items. After Father's visit to the Broadway residence, he shall send
16 Mother an inventory of those items and photographs, and the parties shall meet and
17 confer after Father's visit to the Broadway residence regarding the additional items
18 Father wishes to take. The children shall not be present when Father is in the Broadway
19 residence.

- 20 3) On 5/7/26, Petitioner filed a new Request for Order seeking access to the 2701 Broadway
21 property. Petitioner states that Respondent and Respondent's attorneys refused to allow him to
22 schedule a time to enter the property. Petitioner claims that Respondent and Respondent's
23 attorneys would only allow entry on 9/15/25, Respondent's deadline to let Petitioner into the
24 home. Petitioner was also scheduled to be out of town that day. Petitioner requests that the Court
25 issue the following orders:

- 26 a. Grant Petitioner access to the family residence on a specified date and time, for a period
27 of no less than five (5) hours;
28
29

- 1 b. Grant Petitioner's request to bring assistant Daniela Bin and/or family law counsel, as
2 well as a licensed appraisal/inventory company, the cost of which will be borne solely by
3 Petitioner;
- 4 c. Grant Petitioner's request for access to the entire home during any court-ordered time at
5 the family residence;
- 6 d. Clarify that such access shall not be subject to unilateral limitations or conditions by
7 Respondent; and
- 8 e. Grant Petitioner's request to reserve jurisdiction over the issue of Family Code Section
9 271 sanctions as it relates to Respondent's failure to cooperate with the Court's Findings
10 and Order After Hearing filed on 8/20/25.
- 11 4) On 7/24/26, Respondent filed Responsive Declaration of Michael J. Wess in Opposition to
12 Petitioner's Request for Access to the Broadway Property. Respondent's attorney Michael J.
13 Wess states that it was Petitioner who would not comply with the Court's order through repeated
14 attempts to exceed the scope of the order by giving himself and third parties full access to
15 Respondent and the minor children's private bedrooms, bathrooms, and closets. Respondent
16 requests that the Court issue the following orders:
- 17 a. Deny each of Petitioner's requests in his Request for Order filed 5/7/26;
- 18 b. Order that Petitioner may enter the Broadway property pursuant to the Findings and
19 Order After Hearing filed 8/20/25 with only one family law attorney of his choosing; and
- 20 c. Order that Petitioner may not enter the personal areas of Respondent and the children
21 during the walkthrough, including their bedroom, bathrooms, and drawers/closets in
22 which they keep their personal belongings.
- 23 5) On 7/30/26, Petitioner filed a Reply Declaration in Support of his Request for Access to the
24 Broadway Property. Petitioner reiterates his requests stated in the 3/10/25 and the 5/7/26 Request
25 for Orders, except for the following:
- 26 a. Petitioner amends the request for access to the entire home during any court-ordered time
27 at the family residence to reflect that he will not access Respondent's bedroom or the
28 children's bedrooms.
- 29

6) On 7/31/26, Petitioner filed Evidentiary Objections to the 7/24 Declaration of Michael Wess. Petitioner states the Declaration fails to comply with Code of Civil Procedure section 2015.5 and Family Code section 212.

B. Findings and Order

- 1) As a preliminary issue, Petitioner's Evidentiary Objections to the Declaration of Michael Wess are SUSTAINED and Motion to Strike is GRANTED. The Court did not consider the Responsive Declaration filed 7/24/26.
- 2) In proceeding to the merits of Petitioner's Request for Order filed 5/7/26, the Court rules as follows:
- 3) Petitioner's request that the Court allow him access to the family residence on a specified date and time, for a period of no less than five (5) hours is GRANTED.
- 4) Petitioner's request to bring his assistant Daniela Bin and/or family law counsel, as well as a licensed appraisal/inventory company, the cost of which will be borne solely by Petitioner is GRANTED.
- 5) Petitioner's request for access to the entire home during any court-ordered time at the family residence is GRANTED.
- 6) Petitioner's request that the Court clarify that such access shall not be subject to unilateral limitations or conditions by Respondent is GRANTED.
- 7) Petitioner's request to reserve jurisdiction over the issue of Family Code Section 271 sanctions as it relates to Respondent's failure to cooperate with the Court's Findings and Order After Hearing filed on 8/20/25 is GRANTED.
- 8) Counsel shall meet and confer by close of business Monday, 8/10/26 to coordinate the date of entry.

IV. Request for Order Filed 5/22/26:

A. Procedural History

- 1) On 5/22/26, Respondent filed a Request for Order and supportive pleadings seeking authorization to obtain a \$8,600,000 margin loan from Morgan Stanley to purchase real property 823 Phelps Place NW, Washington D.C., 20008 (Phelps Property).

- 2) On 7/22/26, Petitioner filed a Responsive Declaration asserting that he believes the issue is moot based on the parties' agreement to permit each party to increase their Liquidity Access Line (LAL) to \$9,000,0000.
- 3) On 7/30/26, Respondent filed a Reply Declaration agreeing that the issue regarding the margin line of credit is resolved but asserting that the parties have been unable to agree on how to pay the substantial interest accruing on their respective LALs. Respondent requests both parties be permitted to pay said monthly interest directly from his or her share of community assets held at Morgan Stanley.
- 4) On 8/4/26, Petitioner filed Evidentiary Objections to the Declaration of Ramon Montijo JR., ESQ, Signed July 30, 2026. Petitioner states the Declaration fails to comply with Code of Civil Procedure section 2015.5 and Family Code section 212.
- 5) The Court notes this matter was improperly set in Dept. 404 on 8/4/26; therefore, the matter was continued to Dept. 403 (i.e., the proper home department) on 8/6/26.

B. Findings and Order

- 1) As a preliminary issue, Petitioner's Evidentiary Objections to the Declaration of Ramon Montijo JR., ESQ, Signed July 30, 2026 are SUSTAINED and Motion to Strike is GRANTED. The Court did not consider the Reply Declaration filed 8/4/26.
- 2) The Court finds Respondent's request is MOOT as the parties agree Respondent received a LAL to \$9,000,0000.

V. Request for Order Filed 7/22/26:

A. Procedural History

- 1) On 7/22/26, Respondent filed an ex parte Request for Order seeking: (a) letter of authorization for Morgan Stanley to carry out the liquidation and distribution of \$800,000 to Respondent as attorney's fees; and (b) a standing 48-hour mechanism be established to satisfy future fee requests.
- 2) On 7/22/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner requests the Court deny Respondent's request relief or that the issue of

1 distribution of attorney's fees be heard as a regularly noticed motion with updated Income and
2 Expense Declarations submitted by both parties.

3 3) On 7/22/26, the Court DENIED Respondent's request for emergency relief pending hearing set
4 for 8/6/26.

5 4) On 8/4/26, Respondent filed a Reply Declaration reiterating her requests.

6 **B. Findings and Order**

7 1) Petitioner shall immediately execute a letter of authorization for Morgan Stanley to carry out the
8 liquidation and distribution of \$800,000 to Respondent for attorney's fees pursuant to "Option 1"
9 (i.e., Harvest BDP/ money market from all community accounts and make up any shortfall by
10 selling shares of the ARISTOTLE VALUE EQUITY).

11 2) Petitioner shall include in this letter that, pending further agreement of the parties or Court order,
12 Respondent's requests for attorney's fees shall be satisfied within 48 hours by Morgan Stanley at
13 the advice of Morgan Stanley for the best method to generate the requested funds.

14
15 **Preparation of Order:** Counsel for Respondent shall prepare the Findings and Order After Hearing. If
16 you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing
17 you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the
18 procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the
19 matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit
20 the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it
21 to the court in accordance with CA Rules of Court, Rule 5.125(d),
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,
Petitioner

VS.

COURTNEY MEHTA,
Respondent

) Case Number: FDI-25-802312

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA
)

REQUEST FOR ORDER RE CHILD SUPPORT, ATTORNEY FEES AND COSTS, SANCTIONS,
CORRECTION OF ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). They share one minor child: Aadi Caleb Mehta (DOB: 10/22/23).
- 2) At the prior 3/17/26 hearing (per the Findings and Order After Hearing (FOAH) filed 4/3/26), the Court, in pertinent part:
 - a. Granted Father's request to bifurcate the validity of the parties' premarital agreement and compel arbitration. See section B(1) – B(5).
 - b. Ordered Father to pay Mother \$3,184 in guideline child support effective 4/1/26, with child support arrears as follows:
 - i. Father's parenting time at 5% for the period of time from 12/16/25 (filing date of the Request for Order) - 2/7/26 (the date on which Mother secured employment); and

1 ii. Father's parenting time at 8% for the period of time from 2/8/26 (the date on
2 which Mother secured employment) - 3/31/26 (present). See section B(10) and
3 B(11).

4 3) On 6/16/26, Father filed a Request for Order seeking: (a) correction of the Court's 3/17/26 FOAH
5 (filed 4/3/26) due to a clerical error omitting Mother's income; (b) modification of child support
6 based on Father's increased parenting time to 17% as of 5/14/26; (c) Mother ordered to reimburse
7 Father \$2,629.76 in overpaid child support for the period of 4/3/26 - 6/16/26; and (d) Family
8 Code section 271 in the amount of \$5,556. Father asserts that Mother has repeatedly delayed the
9 arbitration process.

10 4) On 7/20/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order.
11 Mother asserts that: (a) the Court adopted and ordered Mother's proposed timeshare in the 4/3/26
12 orders; (b) neither party argued for the inclusion of Mother's income at the 4/3/26 hearing; and
13 (c) Mother is committed to engaging in arbitration and is not delaying the process; however, there
14 is no imposed deadline for arbitration.

15 5) On 7/20/26, Mother filed a Memorandum of Points and Authorities.

16 6) On 7/20/26, Mother filed an Income and Expense Declaration.

17 7) On 7/30/26, Counsel for Father filed a Reply Declaration of Counsel in Support of Request for
18 Order augmenting the Family Code section 271 sanctions request to \$24,988.72.

19 8) On 7/30/26, Father filed a Statement of Support Calculations.

20 9) On 7/30/26, Father filed a Reply Memorandum of Points and Authorities.

21 10) On 8/3/26, Counsel for Mother filed a declaration regarding Father's failure to file and serve an
22 updated Income and Expense Declaration seeking a continuance and \$2,140 in attorney's fees
23 under Family Code section 271 and 2030.

24 11) On 8/3/26, Father filed an Income and Expense Declaration.

25 12) On 8/3/26, Counsel for Mother filed a declaration regarding prejudice to Mother.

26 **B. Findings and Order**

27 1) Father's request for correction of the Court's 3/17/26 FOAH (filed 4/3/26) due to a clerical error
28 omitting Mother's income in the child support calculation attached as "XSpouse B" is
29 GRANTED.

- 2) The Court will issue an amended 3/17/26 FOAH, which includes Mother's income (\$10,833) on "X Spouse B" attached to the 3/17/26 FOAH (filed 4/3/26), with updated arrears calculations.
- 3) Father's request for modification of child support based on Father's increased parenting time to 17% as of 5/14/26 is also GRANTED as an increase in parenting time qualifies as a change in circumstances warranting modification of child support.
- 4) However, the Court finds good cause to CONTINUE Father's request for modification of child support based on his increased parenting time (to 17% as of 5/14/26) given Father's untimely filing of his Income and Expense Declaration.
- 5) As such, the matter is **CONTINUED to 9/1/26 at 9 AM in Dept. 403** for the purpose of recalculating support effective 5/14/26 and determination of any reimbursement Mother's owes to Father for overpayment of child support from 2/8/26 to present.
- 6) Both parties shall file updated Statement of Support Calculations by 8/20/26.
- 7) The parties shall meet and confer prior to the 9/1/26 hearing to attempt to reach an agreement regarding: (a) modification of support; and (b) any reimbursement Mother's owes to Father for overpayment of support that occurred (i) as a result of the Court's clerical error for the period of 2/8/26 - 5/13/26; and (ii) due to modification of support effective 5/14/26.
- 8) Father's request for Family Code section 271 sanctions is GRANTED in the amount of \$5,000. The Court finds Mother's conduct frustrated the policy of law to promote settlement. The Court reserves jurisdiction over payment of these sanctions to the time of trial.
- 9) Mother's request for Family Code section 271 sanctions is DENIED.
- 10) Counsel for Father shall prepare the Findings and Order After Hearing.
- 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMOILJON MUMINOV,

Petitioner

VS.

ROZIYA SHAYDULLAEVA,

Respondent

) Case Number: FDI-26-802490

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF SPOUSAL OR PARTNER SUPPORT, COMMUNITY &
QUASI-COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismoiljon Muminov and Respondent Roziya Shaydullaeva. There are no minor children subject to this proceeding.
- 2) On 1/26/26, Petitioner filed a Petition for Dissolution indicating the parties were married on 7/24/24 and separated on 3/6/25 for a marriage of 7 months.
- 3) On 3/6/26, Respondent filed a Response and Request for Dissolution also indicating the parties were married on 7/24/24 and separated on 3/6/25 for a marriage of 7 months.
- 4) On 6/24/26, Petitioner filed a Request for Order Change of Spousal or Partner Support, Community & Quasi-Community Property. Petitioner requests the court terminate jurisdiction over spousal support and confirm there is no community and quasi-community property to be divided.
- 5) On 6/24/26, Petitioner filed an Income and Expense Declaration asserting \$0 in monthly income and \$11,511.79 in monthly expenses.

- 6) On 6/24/26, Petitioner filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration indicating personal service of preliminary disclosures on 2/6/26 and service of final disclosures on 6/24/26 by mail.
- 7) On 7/22/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent states that there are currently no temporary or permanent spousal support orders in place, but that Respondent is planning to file a Request for Order seeking temporary spousal support. Respondent alleges that Petitioner's Income and Expense Declaration is incomplete and claims there is community property to be divided.
- 8) On 7/30/26, Respondent filed an Income and Expense Declaration asserting \$2,571 in monthly income and \$3,699 in monthly expenses.
- 9) On 7/31/26, Respondent filed a Request for Order for Spousal Support, which is set for hearing on 9/17/26.

B. Findings and Order

- 1) The Court finds the requests contained in Petitioner's Request for Order Change of Spousal or Partner Support, Community & Quasi-Community Property filed 6/24/26 are not ripe for adjudication for the following reasons:
 - a. There is no spousal support order in place to modify; and
 - b. It is premature to terminate jurisdiction over spousal support and confirm there is no community and quasi-community property to be divided at this time.
- 2) As such, Petitioner's Request for Order Change of Spousal or Partner Support, Community & Quasi-Community Property filed 6/24/26 is DENIED without prejudice.
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALESSANDRO ATES SARRIS,

Petitioner

VS.

DIA DIMA DEGAMO ATES SARRIS,

Respondent

) Case Number: FDI-26-803076

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER EMERGENCY FUNDS FOR OPERATIONAL & MEDICAL SATABILITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alessandro Ates Sarris and Respondent Dia Dima Degame Ates Sarris.
- 2) On 5/27/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 12/13/20 and date of separation is "TBD."
- 3) On 7/17/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 12/13/20 and date of separation is 10/29/25 for a marriage of 4 years and 11 months.
- 4) On 7/21/26, Respondent filed an ex parte Request for Order seeking guideline temporary spousal support, exclusive use and control of the marital residence (851 Van Ness Avenue, Unit 107, San Francisco) for 60 days with Petitioner ordered to maintain the carrying costs, \$5,000 in attorney's fees and costs, orders requiring Petitioner to "execute administrative documents" for Respondent's business and appointment of an elisor if he fails to do so, and an advancement of \$10,000 in community funds. Respondent asserts she faces homelessness as she was forced to vacate the marital residence due to safety concerns, whereas Petitioner owns property in Italy where he can reside. Respondent states she is undergoing intensive clinical treatment for Post Traumatic Stress

1 Disordered (PTSD). Respondent contends that Petitioner controls all community assets and joint
2 accounts, and she has no liquid funds to pay her expenses including essential medical and
3 therapeutic treatments. Respondent attached an Income and Expense Declaration indicating she
4 earns \$0 in average monthly income and has \$7,000 in monthly expenses.

5 5) On 7/21/26, the Court denied Respondent's request for emergency relief pending hearing set on
6 shortened time for 8/6/26.

7 6) On 7/31/26, Petitioner filed a Request to Reschedule Hearing due to improper service that was
8 denied. See Order on Request to Reschedule Hearing filed 7/29/26.

9 7) On 8/4/26, Petitioner filed a Responsive Declaration in opposition to Respondent's requests.
10 Petitioner states he advanced Respondent \$3,000 in June 2026. Petitioner disputes that
11 Respondent left the marital residence for safety reasons and asserts that she could have lived in
12 the second bedroom. Petitioner asserts that Respondent voluntarily left a high paying job in June
13 of 2025 (earned \$164,825 in 2024) to pursue a startup, which Petitioner incurred \$31,000 in debt
14 to support. Petitioner states the parties maintained separate finances during marriage including
15 insurance coverage. Petitioner states the marital residence is worth approximately \$788,000 -
16 \$799,000 and the parties' equity is between \$35,397.22 - \$46,387.22.

17 8) On 8/5/26, Respondent filed an Income and Expense Declaration.

18 **B. Findings and Order**

19 1) Respondent's request for guideline temporary monthly spousal support is GRANTED.

20 2) In accordance with the XSpouse report attached hereto and incorporated herein, Petitioner shall
21 pay Respondent \$3,335 per month in guideline monthly spousal support effective 7/21/26. This
22 balance is due on the 1st of every month commencing 9/1/26.

23 3) The XSpouse report is based on the parties' respective Income and Expense Declarations and
24 imputation of Respondent's expenses (\$7,000 - \$200 paid by others) as income given that she has
25 been maintaining such expenses since separation in October 2025.

26 4) This means that Petitioner owes Respondent \$4,410.80 in temporary monthly spousal support
27 arrears for the period of 7/21/26 – 8/31/26 (\$1,075.80 for July + \$3,335 for August). Petitioner
28 shall pay this balance in full by 8/31/26.

- 1 5) Respondent's request for exclusive use and control of the marital residence (851 Van Ness
2 Avenue, Unit 107, San Francisco) for 60 days with Petitioner ordered to maintain the carrying
3 costs is DENIED.
- 4 6) Respondent's request for \$5,000 in attorney's fees and costs is DENIED as the Court finds there
5 is no disparity in access to funds after support is paid given that Petitioner carries significant
6 community debt.
- 7 7) Respondent's request for orders requiring Petitioner to "execute administrative documents" for
8 Respondent's business and appointment of an elisor if he fails to do so is DENIED.
- 9 8) Respondent's request for an advancement of \$10,000 in community funds is DENIED.
- 10 9) The Court will prepare the Findings and Order After Hearing.